

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Squad #3	CCRB Case #: 201406209	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/22/2014 2:40 AM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 12/22/2015	EO SOL 12/22/2015	
Date/Time CV Reported Mon, 06/23/2014 2:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/23/2014 2:07 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Jeffrey Griffin	00443	934963	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Seth Lynch	00000	932932	PBBX

Officer(s)	Allegation	Investigator Recommendation
A.POM Jeffrey Griffin	Force: PO Jeffrey Griffin used physical force against § 87(2)(b)	§ 87(2)(b)
B. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On June 22, 2014, at approximately 2:40 a.m., § 87(2)(b) left a large party with § 87(2)(b) and § 87(2)(b) on the § 87(2)(b) floor of § 87(2)(b) in the Bronx when he was handcuffed by PO Jeffrey Griffin of the 46th Precinct and unidentified officers from an unknown command. § 87(2)(b) alleged that he was brought to the ground and officers kicked and stomped on his shins (**Allegations A and B**). § 87(2)(b) was brought to the stationhouse and released with a summons for § 87(2)(b) (complaint encl. 3A-C; CCRB statement encl. 3D-I).

Mediation, Civil and Conviction Histories

This case was ineligible for mediation. § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 25, 2014 with regard to this incident (encl. 11RR). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 2B-C).
- PO Griffin has been a member of the service for ten years and there is one substantiated discourtesy allegation against him (encl. 2A).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) provided a description of the one of the officers that handcuffed him which corresponded to PO Griffin's pedigree information. He further stated that this officer transported him and issued him the summons, both of which PO Griffin acknowledged doing. According to the event documents (encl. 7A-H), a call for assistance was made and several officers from four different units from different commands responded. § 87(2)(b) was unable to describe the other five or six officers who physically apprehended him. § 87(2)(g)
- § 87(2)(b) PO Griffin stated that two officers, who he could not recall, assisted him. § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b) also failed to cooperate with the investigation's attempts to obtain a statement from her. Additionally, the investigation conducted various database searches to identify potential residents of the incident location and sent several letters to these individuals. Upon receipt of NYPD documents, the CCRB obtained identifying and contact information for four additional individuals who received summonses during the incident. The investigation exhausted all contact attempts which elicited no response (encl. 8A-R). Supplementary database searches were also conducted and contact attempts were made to all yielded results.
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Force: PO Jeffrey Griffin used physical force against § 87(2)(b)

Allegation B – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that as he and § 87(2)(b) were standing in the hallway, an officer made contact with § 87(2)(b) and he said, “That’s not how you supposed to do no female.” He denied ever being asked to leave the location. Six or seven officers, none of whom he could describe aside from one who was identified by investigation as PO Jeffrey Griffin of the 46th Precinct, who were standing near him, grabbed his left arm, pulled it behind his back and shoved him forward to ground. The officers kept hold of him and went down on top of him. He did not offer resistance against the officers bringing him down to the ground. The right side of his face hit the ground. His legs were flat behind him. Officers held his left arm behind his back and placed their knees into his back as they rested on top of him. § 87(2)(b) s right hand was underneath his body and his right elbow stuck out. Officers stomped on his right shin and kicked both of his shins. He did not know how many times. Officers kicked both of § 87(2)(b) s shins. He did not know how many times he was kicked. § 87(2)(b) was not moving his body around in any way as he lay on the ground. An officer grabbed § 87(2)(b) s right arm and pulled it behind his back. § 87(2)(b) was handcuffed and lifted up by officers. He had been on the ground for at least two to three minutes. He never heard officers saying anything to him or issuing him any commands. § 87(2)(b) stated that he remembered PO Griffin to be physically involved in handcuffing him, but he could not see where he was during the apprehension. § 87(2)(b) was unable to provide several details regarding the circumstances of the incident. He claimed that although he consumed alcohol (he could not remember the quantity), he was not intoxicated.

§ 87(2)(b) alleged that he sustained bruising and swelling on his right eye from landing on his face when he fell to the ground, swelling on his right calf and lower back pain. § 87(2)(b) did not seek medical treatment at a hospital or with a private doctor. § 87(2)(b) provided photographs of his face taken on the incident date that depict a one centimeter cut under his right nostril, but show no swelling or bruising to his right eye (encl. 3J-Q). The command log entry lists his physical and mental condition as apparently normal (encl. 8A).

The § 87(2)(b) summons issued by PO Griffin to § 87(2)(b) notes that he refused a lawful order from PO Griffin to leave the location. When asked to leave, § 87(2)(b) stated, “I’m not fucking leaving and attempted to push through the officer (encl. 5D).

According to PO Griffin, when he stepped into the hallway he saw officers attempting to apprehend a woman, identified by investigation as § 87(2)(b). He observed § 87(2)(b) attempting to grab one of the officer’s backs. Before § 87(2)(b) made contact with the officer, PO Griffin verbally directed him away from the officer. He told § 87(2)(b) to leave the location about three or four times. § 87(2)(b) screamed, “Fuck no. I’m not going anywhere,” “What the fuck you doing?” and “Fuck you. I’m not leaving.” § 87(2)(b) appeared to be intoxicated because he was very loud, using obscenities and his breath smelled of alcohol. PO Griffin said, “Sir, please go,” as he pointed down the hall towards the exit with his one of his arms. § 87(2)(b) facing him, slapped PO Griffin’s arm. PO Griffin grabbed § 87(2)(b) s left arm, pulled it behind his back and pushed him onto the ground. He lay on his stomach. PO Griffin did not see if his face hit the ground. § 87(2)(b) kicked his legs out. PO Griffin placed the handcuff on § 87(2)(b) s left hand. § 87(2)(b) held his right arm stiff underneath his body as PO Griffin attempted to pull it out. Another officer, who PO Griffin did not recall, grabbed § 87(2)(b) s right arm from underneath him and pulled it behind his back. As he did this, another officer, who PO Griffin did not recall, held § 87(2)(b) s upper body on the ground. § 87(2)(b) was handcuffed. PO Griffin

did not strike § 87(2)(b) No officer struck him, kicked him or stomped on his shins. PO Griffin saw no injury on § 87(2)(b) § 87(2)(b) never complained of any injury to him (encl. 5E-G).

Lt. Seth Lynch of Patrol Borough Bronx (encl. 6E-G), § 87(2)(b) (encl. 4A-B) and the anonymous female 911 caller (encl. 4C) did not witness § 87(2)(b)'s apprehension, but they each described an unruly crowd in the hallway.

Patrol Guide Procedure 203-11 authorizes officers to use the minimum amount of force necessary to overcome resistance to effect an arrest (encl. 1A-B).

§ 87(2)(g)

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Team: 5

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date